

BY-LAW NO. 14688

**A By-law to amend Building By-law No. 14343
regarding housekeeping and miscellaneous amendments**

THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

1. This by-law amends the indicated provisions of Building By-law 14343.
2. In Division A of Book I (General), Sentence 1.1.1.1.(2), Council strikes out Clauses (j) and (k) and substitutes:

“

 - j) a *noncombustible container* used only for storage of emergency supplies and required by the City's Emergency Social Services Program if
 - i) the *building area* of the *container* is no more than 15 m²,
 - ii) the *container* is located at least 3 m from any *building*, and
 - iii) the location of the *container* does not obstruct the *exit* path of an *existing building* and the firefighter's access path to an *existing building*,
 - k) structures necessary for the operation of a *public bike share station* if the *public bike share station*
 - i) does not interfere with any public works, public facilities or public amenities,
 - ii) does not include any enclosed structures,
 - iii) is located at least 3 m from any *building*,
 - iv) does not obstruct the *exit* path of an *existing building* and the firefighter's access path to an *existing building*, and
 - l) structures necessary for the operation of an *e-scooter station* if the *e-scooter station*
 - i) does not interfere with any public works, public facilities or public amenities,
 - ii) does not include any enclosed structures,
 - iii) does not obstruct the *exit* path of an *existing building* and the firefighter's access path to an *existing building*.”.
3. In Division A of Book I (General), in Sentence 2.2.1.1.(1) after Objective Statement OS4.2., Council adds the following “OS4.3 – intruders being able to force their way through physical security feature”.

4. In Division A of Book I (General), in Sentence 3.2.1.1.(1), in Functional Statement F30, Council adds the words “assault, ” after the words “contact, ”.
5. In Division A of Book I (General), Sentence 1.4.1.2.(1), Council adds the following definitions in correct alphabetical order:

“E-scooter station means an e-scooter sharing facility where e-scooters are stored and from which the general public may rent and return e-scooters and other objects or equipment necessary for the operation of an e-scooter system.

E-scooter system means a service that provides the general public with an opportunity to rent e-scooters through an automated system, on a short-term basis for use within the city as part of a network comprised of no fewer than 50 e-scooter stations located on separate sites on streets, and public and private real property.”.

6. In Division A of Book I (General), Sentence 1.4.1.2.(1), Council strikes out the definition of “Public bike share” and substitutes:

“Public bike share means a service that provides the general public with an opportunity to rent bicycles through an automated system, on a short term basis for use within the City as part of a network comprised of no fewer than 50 public bike share stations located on separate sites on streets, and public and private real property.”.

7. In Division A of Book I (General), Sentence 1.4.1.2.(1), Council strikes out the following definitions:

(a)

“Greenhouse agricultural occupancy (Group G, Division 3) means an agricultural occupancy where plants are grown in a *building* or part thereof that is primarily constructed of roofs and walls designed to transmit natural light.”; and

(b)

“Home-type care occupancy (Group B, Division 4) means the *occupancy* or use of a *building* consisting of a single detached housekeeping unit where care is provided to residents and may include the living space of the caregiver and their family. (See Note A-1.4.1.2.(1).)”.

8. In Division B of Book I (General), Article 1.3.1.2., in Table 1.3.1.2., Council:

(a) strikes out the following row:

“

ASHRAE	ANSI/ASHRAE/IES 90.1-2019	Energy Standard for Buildings Except Low-Rise Residential Buildings	10.2.2.1.(1) A-10.2.2.2.
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”, and substitutes:

“

ASHRAE	ANSI/ASHRAE/IES 90.1-2019 ⁽⁹⁾	Energy Standard for Buildings Except Low-Rise Residential Buildings	10.2.2.1.(1) A-10.2.2.2.
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”; and

(b) adds the following new table note in the correct numerical order:

“(9) The version of the standard as originally adopted.”.

9. In Division B of Book I (General), Article 1.3.1.2., in Table 1.3.1.2., Council strikes out the rows:

“

ASHRAE	ANSI/ASHRAE 62- 2001 (except addendum n)	Ventilation for Acceptable Indoor Air Quality (except Addendum n)	A-9.25.5.2.
ASHRAE	ANSI/ASHRAE 62.1- 2016	Ventilation for Acceptable Indoor Air Quality	6.3.1.1.(2) 6.3.1.1.(3) 6.3.2.2.(1)

”, and substitutes

“

ASHRAE	ANSI/ASHRAE 62- 2001 (except addendum n)	Ventilation for Acceptable Indoor Air Quality (except Addendum n)	6.3.1.1.(2) 6.3.1.1.(3) 10.2.2.3.(1) A-9.25.5.2.
ASHRAE	ANSI/ASHRAE 62.1- 2016	Ventilation for Acceptable Indoor Air Quality	6.3.2.2.(1)

”.

10. In Division B of Book I (General), Sentence 3.4.6.12.(1), Council strikes out “(2) and (3), and Article 3.4.5.14.” and substitutes “(2) and (3), and Articles 3.4.5.14. and 3.4.6.20.”.

11. In Division B of Book I (General), Sentence 3.4.6.16.(1), Council strikes out “(5) and (6) and Article 3.4.5.17.” and substitutes “(5) and (6), and Articles 3.4.6.17. and 3.4.6.20.”.

12. In Division B of Book I (General), after Article 3.4.6.19., Council adds:

“3.4.6.20. Security Gates and Doors for Non-Residential Floor Areas

1) This Article applies to buildings or parts of buildings classified as assembly occupancy, business and personal services occupancy, mercantile occupancy, medium hazard industrial occupancy, and low hazard industrial occupancy.

2) A security gate or security door is permitted to be installed in front of an exterior exit door of the building provided the installation and use conform to the Fire By-law.”.

13. In Division B of Book I (General), Sentence 3.1.3.2.(2), Council strikes out “Article 3.1.3.4. and Subsection 11.4.5.” and substitutes “Articles 3.1.3.4. and 3.1.3.5., and Subsection 11.2.5.”.

14. In Division B of Book I (General), Sentence 3.2.5.12.(7), Council strikes out “for balconies and decks exceeding 610 mm in depth measured perpendicular to the exterior wall.” and substitutes “under exterior projections used to support balconies or decks that exceed 610 mm in depth measured perpendicular to the exterior wall.”

15. In Division B of Book I (General), Article 3.2.6.1., Council strikes out Sentences (1) and (2) and substitutes:

“1) Except as provided in Sentence (2) and (3), this Subsection applies to a *building*

- a) more than 18 m high, measured between *grade* and the floor level of the top *storey*, or
- b) containing a *floor area* or part of a *floor area* located above the third *storey* designed or intended as a Group B, Division 2 or 3 *occupancy*.

2) Deleted.

16. In Division B of Book I (General), Article 3.3.4.2., Council:

(a) strikes out Sentence (3) and substitutes:

“3) Floor assemblies within a *dwelling unit* need not be constructed as *fire separations* provided the dwelling unit complies with Sentence (6) or

a) the distance between the lowest floor level and the uppermost floor level within the *dwelling unit* is not more than 6 m, and

b) the *dwelling unit* is separated from the remainder of the *building* by a *fire separation* having a *fire-resistance rating* not less than

i) 1 h if the *building* is not *sprinklered* throughout,

ii) 45 min if the *building* is *sprinklered* throughout and it is not more than 3 *storeys* in *building height*, or

iii) 1 h if the *building* is *sprinklered* throughout and it is more than 3 *storeys* in *building height*.

”; and

(b) adds a new Sentence (6) in the correct numerical order:

6) Floor assemblies within a *dwelling unit* need not be constructed as *fire separations* provided

“a) the *dwelling unit* does not

- i) exceed 4 storeys in height, or
 - ii) include more than 1 storey of *basement*,
 - b) the *building* is *sprinklered*,
 - c) *means of egress* is provided directly to the exterior in accordance with Article 3.3.4.4.,
 - d) an unenclosed balcony or deck is provided directly accessed from the uppermost floor level, that
 - i) is not more than 10 m above adjacent ground,
 - ii) is not less than 1500 mm deep from the outside face of the exterior wall to the inside edge of the balcony with a clear width of not less than 1700 mm, and
 - iii) provides not less than 2 m² of balcony space for each bedroom, and
 - e) The balcony or deck required by Clause (d), shall be separated from the remainder of the *building* by a *fire separation* with not less than a 1 h *fire-resistance rating*, except
 - i) the *fire-resistance rating* may be not less than 45 min provided the *fire-resistance rating* required by Subsection 3.2.2. is permitted to be less than 1 h for the floor assembly below the *floor area*, and
 - ii) openings in the *fire separation* may be protected by a water curtain designed in conformance with Sentence 3.2.3.13.(5).
- (see Note A-3.3.4.2.(6)).

17. In Division B of Book I (General), Notes to Part 3, Council adds the following new Note in the correct alphanumerical order:

“A-3.3.4.2.(6) Floor Fire Separations in Dwelling Units. The provision of 3.3.4.2.(6) are intended to provide an alternative to the provisions of Clauses 3.3.4.2.(3)(a) and (b) that addresses complex residential building forms on sloped sites. Due to urban densification efforts, residential development is now occurring on denser and larger sites, the form of residential units are changing and they are frequently higher above adjacent ground surfaces due to stacked dwelling unit arrangements and sloped sites.

Because the establishment of a fire separation within a dwelling unit is generally impractical and unreliable, Sentence 3.3.4.2.(6) provides for the design of a protected balcony or deck to act as an area of refuge for occupants in the event they are cut-off from the means of egress by a rapidly developing fire.

The means of egress from a dwelling unit provided with a balcony or deck meeting Sentence 3.3.4.2.(6) is required to both be directly to the exterior and comply with Article 3.3.4.4., this may constrain the set of egress solution available under Article 3.3.4.4. In

most cases, this will be an exterior door directly at the adjacent ground level or may include a set of stairs discharging directly to the adjacent ground level. The adjacent ground level, as referred to in this Article and in 3.3.4.4. is not necessarily the same as grade, and may be an exterior hardscaped surface designed to be suitable for unimpeded occupant egress to a street, lane, or other public throughfare.”.

18. In Division B of Book I (General), Subsection 3.3.7., Council adds the following new Articles in the correct numerical order:

“3.3.7.1. Scope

- 1)** This Subsection is intended to address issues of life safety through the security of buildings.

3.3.7.2. Skylights

- 1)** All openable skylights shall be designed to prevent opening from the outside when in the closed and locked position.
- 2)** All exterior skylight fasteners shall be tamperproof.

3.3.7.3. Doors

- 1)** All entrance and exterior doors to dwelling units, doors between dwelling units and attached garages, and doors which provide direct or indirect access from storage garages to dwelling units shall conform to Subsections 9.6.1. and 9.7.3.

3.3.7.4. Sidelights to Doors

- 1)** All sidelights to doors and all windows adjacent to doors located within 915 mm of the door locks shall conform to Sentence 9.6.1.4.(1).

3.3.7.5. Exterior Sliding Windows

- 1)** In buildings of residential occupancy, all exterior windows with a sliding sash located within 5 m of finished grade, shall be provided with a positive, automatically locking mechanism and installed so that the sliding sash cannot be removed from its frame when in the locked position.

3.3.7.6. Security Gates for Storage Garages

- 1)** Security gates installed at vehicle entrances or at secured areas in storage garages shall comply with the following provisions.
 - a) Except as required in Clause (1)(b), a security gate shall be designed and installed with clearance between the moving parts and adjacent surfaces which is sufficient to prevent injury or entrapment and is no greater than 100 mm.
 - b) If a horizontally sliding security gate opens by sliding into a pocket guard enclosure constructed against a wall,

- i) the clearance between the pocket guard enclosure and the wall surface shall be no greater than 25 mm; and
 - ii) the clearance between the pocket guard enclosure and the gate frame shall be no greater than 25 mm on each side of the gate frame.
- c) A security gate shall be designed and installed with
 - i) a load sensitive device designed to reverse the gate on contact with an obstruction,
 - ii) a five second audible or visual warning device indicating the opening or closing of the gate, and
 - iii) a maximum clearance between the gate frame and wall surface of no more than 25 mm.”.

19. In Division B of Book I (General), Clause 3.3.7.7.(2)(b), Council strikes out the words “Subsection 3.2.6.”, and substitutes “Subsections 3.2.6. or 3.4.1.”

20. In Division B of Book I (General), Clause 3.3.7.7.(4)(b), Council adds “or above” after “*floor areas* at”.

21. In Division B of Book I (General), in Subclause 3.3.8.1.(1)(b)(ii), Council strikes out “steel mesh” and substitutes “steel mesh ceiling”.

22. In Division B of Book I (General), Council strikes out Subclause 3.3.8.1.(1)(c)(iii) and substitutes the following:

“iii) is equipped with a steel mesh ceiling not less than 460 mm below the sprinkler head, and”.

23. In Division B of Book I (General), in Article 3.8.5.4., at the end of the Article, Council adds the following new Sentences in the correct numerical order:

“4) *Dwelling unit* entry doors shall conform with the requirements of Article 3.8.3.6.(11), except that they may have a clear space on the latch side on the in swing side of not more than 450 mm beyond the edge of the door opening, notwithstanding the requirements of Clause 3.8.3.6.(11)(a).

5) Doorways provided with power door operators, or provided with a special outlet box and cover plates that are designed, located and wired specifically to accommodate the future installation of a power door operator, may provide the clear floor space described in Sentence 3.8.3.6.(16).”.

24. In Division B, of Book I (General), in Sentence 8.2.1.3.(1), Council strikes out “located 2 m or more” and substitutes “located 2 m or less”.

25. In Division B, of Book I (General), in Clause 9.8.6.2.(4)(a), Council adds “house” after “single detached”.

26. In Division B, of Book I (General), in Sentence 9.9.9.1.(1), Council strikes out Clause (b) and substitutes the following:

“b) an *exit* doorway located not more than 2.0 m above adjacent ground level.”.

27. In Division B, of Book I (General), in Subsection 9.10.6., Council inserts the following new Article in the correct numerical order:

“9.10.6.3. Di-electric Liquid Filled Transformers

1) Where noncombustible surfaces are required by the “Electrical Safety Regulations” or its referenced standards, to prevent the exposure of combustible construction from di-electric liquid filled equipment, exterior wall assemblies and roof surfaces within the stipulated area may comply with the provision of Article 3.1.5.25.”.

28. In Division B, of Book I (General), in Article 9.10.9.16.(4)., Council:

(a) strikes out Sentence (4) and substitutes the following:

“**4)** Deleted.”; and

(b) strikes out Sentence (5) and substitutes the following:

“**5)** The *fire separation* required by Sentence (1), between the principal *dwelling unit* and a subordinate *ancillary residential unit*, in a *sprinklered building* may be constructed as

a) wall or partition assembly consisting of

i) not less than one layer of 1/2” Type C or 5/8” Type X wall board on wood or steel studs on each side,

ii) resilient channel installed on at least one side, and

iii) *noncombustible* insulation of at least 3-1/2” depth throughout, and

b) floor assemblies consisting of

i) not less than one layer of 1/2” Type C or 5/8” Type X wall board,

ii) with resilient channel, and

iii) at least 3-1/2” of *noncombustible* insulation.”.

29. In Division B, of Book I (General), in Article 9.10.15.4., Council:

(a) in Table 9.10.15.4., strikes out the header “**Maximum Area of Glazed Openings in Exterior Walls of Houses**” and substitutes “**Maximum Area of *Unprotected Openings* in Exterior Walls of Houses**”; and

- (b) in Table 9.10.15.4., strikes out the column header “**Maximum Aggregate Area of Glazed Openings, % of Exposing Building Face Area**” and substitutes “**Maximum Aggregate Area of Unprotected Openings, % of Exposing Building Face Area**”.

30. In Division B of Book I (General), in Sentence 9.10.15.5.(14), Council strikes out “Sentence 9.10.15.4.(7)” and substitutes “Sentence 9.10.15.4.(8)”.

31. In Division B of Book I (General), in Article 10.2.2.21., in the header to Table 10.2.2.21.A, Council strikes out “**10.2.1.5.**”, and substitutes “**10.2.1.4.**”

32. In Division B of Book I (General), following Subsection 11.2.7.1., Council inserts the following new Article:

“11.2.7.2. Alternative Compliance Measures for Energy Upgrades

1) An existing residential *building* containing not more than two principal *dwelling units* may be converted into 2 or more strata lots, if the entire *building* is

- a) upgraded to comply with the domestic hot water heating requirements in Sentence 10.2.2.12.(1), and
- b) upgraded to comply with electric heating requirements in Sentences 10.2.2.13.(1) and 10.2.2.14.(1).”.

33. In Division B of Book I (General), Sentence 11.5.2.1.(1), Council strikes out “Flow Chart 11.5.2.1.-A, -B, and -C” and substitutes “Flow Chart No. 1, 2, and 3”.

34. In Division B of Book I (General), Article 11.5.2.1., in note (1) of Flow Chart No. 1 “RENOVATION PROJECT TYPE (Flow Chart No. 1)”, Council strikes out “11.5.1.1.(5)” and substitutes “11.5.2.1.(3)”.

35. In Division B of Book I (General), Article 11.5.2.1., in note (3) of Flow Chart No. 2 “CHANGE OF MAJOR OCCUPANCY CLASSIFICATION PROJECTS (Flow Chart No. 2)”, Council strikes out “11.5.1.1.(5)” and substitutes “11.5.2.1.(3)”.

36. In Division B of Book I (General), in Article 11.5.3.1.(2), in Table 11.5.3.1.(2) Council strikes out the row

“

\$0.00	to	N	N	N	N	N
\$142,999						

”; and substitutes

“

\$0.00	to	N	N	N	N	N
\$152,999						

”.

37. In Division B of Book I (General), in Article 13.1.1.5., Council strikes out Sentence (1) and substitutes the following:

“

1) For the purposes of this Part, the term “temporary building” refers to a *building* that is neither intended for nor constructed to a standard that would support continuous ongoing occupancy on a permanent basis, and is used for a time period that does not exceed

a) 12 consecutive months, or

b) a fixed term of occupancy no longer than 3 years, that is acceptable to the Chief Building Official.”.

38. In Division B of Book I (General), in Clause 13.4.5.1.(1)(c), Council strikes out “*arts and culture event* complies with the fire and life safety requirements of Sentences (2) and (3)” and substitutes “temporary retail use complies with the fire and life safety requirements of Sentences (2), (3) and (4)”.

39. In Division C of Book I (General), in the Schedule of Fees at the end of Part 1, under “Part A – Building”, Council strikes out Items 2(n) and (o), and substitutes the following:

“(n) For review of plans, specifications, building materials, procedures or design methods for the purpose of acceptance of an alternative solution for new or existing construction under Article 2.3.2.1. of Book I, Division C
for each application..... \$1,190.00

(o) Deleted.”.

40. A decision by a court that any part of this By-law is illegal, void, or unenforceable severs that part of the By-law, and is not to affect the balance of this By-law.

41. This by-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 5th day of May, 2026

Signed _____ “Ken Sim”
Mayor

Signed _____ “Katrina Leckovic”
City Clerk